IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 404
CP(CAA)61/ND/2025

IN THE MATTER OF:

Festive Homes Priyate Limited With Bhatia Propcon Private Limited ... Applicant

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 02.12.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Naresh Kumar, Adv.
For the OL : Mr. Kartikeya Asthana, Adv.

HYBRID HEARING (PHYSICAL & VC)

Report on behalf of the Official Liquidator is on record. Learned Counsel for the applicant has submitted that the notice was served to the Regional Director by hand delivery on 29.07.2025 and through email on 30.07.2025. Despite repeated calls, no one has appeared on behalf of the Regional Director. On perusal, it is observed that there is a representation/affidavit dated 18.09.2025 by the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi on record without any observation and merely stating that RoC's report is awaited. It is further seen that no representation on behalf of the Regional Director, in spite of clear direction given in our order dated 22.07.2025 to the Statutory Authorities under the statutory provisions for making available for their representation within 30 days from the date of issue notice. In view of the conduct of the Regional Director with reference to the report to this application, let the matter be reported to the Ministry of Corporate Affairs. Regional Director is directed to appear (in person) physically on the next date of hearing i.e. 16.12.2025. Accordingly, Registry is directed to issue Court Notice to the Regional Director for their physical appearance. Let a copy of this order be sent to the Secretary, Ministry of Corporate Affairs, Government of India.

List on 16.12.2025.

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH